

		Defendant's motion to strike is DENIED without prejudice as MOOT in light of the ruling on the demurrer. Plaintiff shall have 30 days to file a Second Amended Complaint. The Case Management Conference is CONTINUED to March 25, 2027, at 9:30 a.m. in Department C12. Moving Defendant shall provide notice.
8.	Spivey vs. Liboiron 25-01476784	Motion to Enforce Settlement Plaintiff Jessica Spivey's motion to enforce settlement is CONTINUED to October 16, 2026, at 9:30 a.m. in Department C12, due to a proof of service defect and for further briefing as ordered below. As an initial matter, the proofs of service of the moving papers are defective in that they fail to state the email address of the person making service. (Code Civ. Proc., § 1013b, subd. (b)(1).) Plaintiff shall properly serve all moving papers on all parties who have appeared in this action and file proper proof of service of the same with the court by Friday 9/18/26. The subject settlement agreement also reveals multiple procedural issues that plaintiff has failed to address. The settlement agreement settles two separate actions between the parties, including (1) the instant action, Case No. 2025-01476784; and (2) <i>Spivey v. Liboiron, et al.</i>, Case No. 2025-01476793, a wage and hour action that includes Private Attorneys General Act of 2004 (PAGA) claims. (See Schmeichel Decl. ¶¶ 3-5, Ex. 1.) Plaintiff has not filed a motion to consolidate for purposes of enforcing settlement or even a notice of related cases to date, and these cases have yet to be deemed related, much less consolidated. Plaintiff is ORDERED to serve and file a supplemental brief supported by citations to authority addressing all of the following issues, by Friday 9/18/26: (1) Whether Code of Civil Procedure section 664.6 allows the court to enter a judgment pursuant to a settlement agreement in just one of the two separate actions that the settlement agreement jointly resolves. (See Code Civ. Proc., § 664.6, subd. (a) ["If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court ... for

settlement of the case, or part thereof, the court, upon motion, may enter judgment *pursuant to the terms of the settlement.*”]; see also *Machado v. Myers* (2019) 39 Cal.App.5th 779, 790, 794 [entry of judgment different from the parties’ settlement agreement “runs afoul of section 664.6, which allows for entry of judgment ‘*pursuant to the terms of the settlement*’”].)

(2) Whether the subject settlement agreement—which in part settles plaintiff’s “individual” PAGA claims asserted in the separate wage and hour action (2025-01476793)—must be reviewed and approved by the court before it may be enforced pursuant to Code of Civil Procedure section 664.6. (See Lab. Code, § 2699, subds. (a), (s)(2) [“The superior court shall review and approve *any* settlement of *any* civil action filed pursuant to [PAGA]. The proposed settlement shall be submitted to the agency at the same time that it is submitted to the court.”]; see *Williams v. Superior Court (Marshalls of CA, LLC)* (2017) 3 Cal.5th 531, 549 [“PAGA settlements are subject to trial court review and approval”]; *LaCour v. Marshalls of CA, LLC* (2025) 117 Cal.App.5th 505, 512 [defining “individual” PAGA claims vs. “representative” PAGA claims]; see also Schmeichel Decl. ¶ 5, Ex. 1.)

(3) Whether plaintiff or any other party has sought and/or obtained court approval of the settlement of the PAGA claim(s) in the separate wage and hour action (2025-01476793), and the status of any such request for relief, if any.

All parties shall take notice of the court’s intent to take judicial notice on its own motion of the operative first amended complaint filed in the wage and hour action (Case No. 2025-01476793) at the time of the continued hearing on this matter. (See Evid. Code, §§ 452, subd. (d), 455.)

As stated above, this hearing is CONTINUED to October 16, 2026, at 9:30 a.m. in Department C12.

REMINDER: Jury trial in this matter is set for December 11, 2026.

THIS RULING IS FINAL.

Court clerk shall give notice.